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|   |                                                                                                                                          | Plaintiffs' health and safety sufficient to support a claim for punitive damages at the pleading stage.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 5 | <b>All Inclusive Insurance Services, LLC v. EOS Organization, LLC</b><br><br><b>2023-01310746</b><br><br><b>Motion to Strike Answer</b>  | <p>Plaintiffs All Inclusive Insurance Services, LLC and Isidro Miramontes' motion to strike the Answer of Defendant EOS Organization, LLC ("EOS"); and for terminating sanctions against EOS is CONTINUED to September 28, 2026, at 1:45 p.m.</p> <p>The proof of service shows Plaintiffs served the moving papers on EOS who is appearing in <i>pro per</i> via email. (ROA 369.) There is no proof that EOS consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the moving papers by electronic mail on EOS was insufficient.</p> <p>Plaintiffs are ORDERED to serve the moving papers and give notice of the continued hearing date on EOS pursuant to Code of Civil Procedure within 5 days of this ruling and file proof of service of the same within 10 days.</p> <p>Plaintiffs to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 6 | <b>Barrera v. Mother's Market &amp; Kitchen, Inc.</b><br><br><b>2025-01480339</b><br><br><b>Motion for Leave to File Cross Complaint</b> | <p>Defendant Mother's Market &amp; Kitchen, Inc.'s unopposed Motion for Leave to File a Cross-Complaint is GRANTED.</p> <p>Defendant is ORDERED to file the attached Cross-Complaint within 5 days of this order.</p> <p>"A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action." (Code Civ. Proc., § 426.50.)</p> <p>There is no indication of bad faith in filing the proposed Cross-Complaint. Defendant discovered the alleged cause of Plaintiff's injuries was a product of Simply Layered, Inc. after discovery was conducted. (Rystad Decl., ¶¶ 4-9.) Additionally, the Cross-Complaint arises out of the same occurrences as the Complaint, thus, it would serve judicial economy to allow the Cross-Complaint to be filed. Thus, Defendant's Motion is GRANTED</p> |
| 7 | <b>Turner v. Gordy</b>                                                                                                                   | Plaintiff/Cross-Defendant Renita R. Turner's Motion to Set Aside is DENIED.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |